DIVISION BENCH **ITEM NO. 3**

NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH
PRAYAGRAJ

CA (CAA) No.4/ALD/2023 (1st Motion)

CORAM:

1. **SHRI PRAVEEN GUPTA,**
   HON'BLE MEMBER (JUDICIAL)
2. **SHRI ASHISH VERMA,**
   HON'BLE MEMBER (TECHNICAL)

Date of Order: 23rd March, 2023

Attendance-Cum-Order Sheet of the Hearing.

NAME OF THE COMPANY	**ACE LANDCRAFT REALTORS PVT. LTD. WITH STAR LANDCRAFT PVT. LTD.**
UNDER SECTION	**230/ 232 OF COMPANIES ACT 2013**

Counsel Appeared Through Physical Hearing:

Sh. Krishna Dev Vyas, Adv. : *For the Applicants*

ORDER

This is first motion petition.

While arguing the matter by the Ld. Counsel representing the applicant, it was observed that with respect to one of the two secured creditors of the transferee company namely Tata Capital Housing Finance Limited, though there is an affidavit filed on behalf of Ms. Akanksha Bandhari, giving consent on behalf of the Secured Creditor, however there is no resolution of the secured creditor in her favour, whereby she has been authorized to execute an affidavit thereby giving consent on behalf of secured creditor.

Faced with this situation, Ld. Counsel seeks a short adjournment to place on record the copy of the resolution of the secured creditor.

Let the matter be put up for further hearing on 12th April, 2023.

-Sd- ***-Sd-***
(Ashish Verma) **(Praveen Gupta)**
Member (Technical) **Member (Judicial)**

23rd March, 2023
Kavya Prakash Srivastava
(Stenographer)